

Harassment & Discrimination

Title VI

"No individual may be excluded from participation in, be denied the benefits of, or otherwise be subjected to discrimination due to race, color, or national origin in any program that receives federal funds" (34 C.F.R. Pt. 100).

VIOLATIONS:

- **Hostile environment** due to race, color, or national origin that is created, encouraged, accepted, tolerated, or left uncorrected.
- **Retaliation** for filing a complaint, participating in an investigation, or opposing discriminatory practices.
- Unfair **actions (intentional or unintentional)** by staff that exclude participation, deny benefits, or discriminate due to race, color, or national origin.



Retaliation

Retaliation = Adverse actions due to Title VI assertions. Based on the (1) evidence & (2) time between the assertion & the adverse action. Actions might include –

- Harassment
- Harsher grading
- Less academic support
- Hostile or intimidating communication
- Trivialization of other discrimination reports
- Baseless reports to external entities
- Exclusion from extracurriculars
- Unwarranted discipline
- Differential treatment



Harassment

Harassing Conduct = Unwelcome conduct (e.g., verbal abuse, graphic or written insulting statements, physical harm, threats, humiliating behavior) due to race, color, or national origin.



Hostile Environment

Is the environment heavily charged with prohibited discrimination?

Hostile Environment = Harassing conduct based on race, color, or national origin that, in its totality –

- A reasonable person would find objectively offensive.
- The targeted person(s) found subjectively offensive.
- Is severe or pervasive, due to -
 - o Overall context, nature, scope, frequency, duration, & location of the conduct.
 - o Number of individuals, age, & relationships of the people involved.
- Results in limit/denial of access to school benefits.



School Awareness

Actual Notice ☒

- Employee **knew** of the hostile environment (e.g., staff observed harassing conduct, verbal report to staff, or written complaint).

Constructive Notice ☒

- Employee **should have known** of the hostile environment if reasonable & diligent inquiry to provide care for each student is present (e.g., knowledge of widespread incidents, negative behavior patterns, graffiti, or media post).



School Response



1 Investigate/**gather info.** on the context of the incident including the frequency of the incident(s), number of people involved, & the impact on the student to participate or benefit from school.



2 **Assess** if harassing conduct occurred & if a **hostile environment** is present (defined above).



Promptly & effectively take **action** reasonably calculated to:

- End the harassment
- Eliminate the hostile environment
- Prevent reoccurrence

Harassment by multiple individuals may signal a broader, environmental issue, requiring a **systemic response** such as:

- Title VI staff training.
- Progressive discipline consequences.
- Directly inform parents of right to file an Office for Civil Rights (OCR) complaint.
- Climate survey & targeted action planning.
- Guide aggressors in identifying ways to (1) fix the harm they caused in the school community & (2) prevent similar harm by others.
- Directly/publicly reaffirm the commitment to unallowable school behaviors & the envisioned school culture (e.g., assembly, parent conf., staff mtg., media release).

Resources

Title VI of the Civil Rights Act of 1964 (34 C.F.R. Pt. 100) ([link](#))

Dear Colleague Letter: Protecting Students from Discrimination, such as Harassment, Based on Race, Color, or National Origin, Including Shared Ancestry or Ethnic Characteristics, 2024 ([link](#))

Discrimination

Disparate Treatment

Intentional discrimination = An individual or group is treated less favorably based on a race, color, or national origin, such as:

- Discriminatory written policy with explicit language requiring students of one national origin be treated differently from another.
- Racial hostility used by staff during discipline administration.

Disparate Impact

Unintentional discrimination = A policy or practice, neutrally written, disproportionately affects groups of one race, color, or national origin, such as:

- Policy implemented in a discriminatory manner due to –
 - o On-the-fly decisions for behaviors that the policy does not fully define.
 - o Selective enforcement of the discipline policy (e.g., overlooking violations, firm enforcement).
 - o Targeting student characteristics (e.g., clothing style, hair style), even if implemented on all students.



School Analysis

Investigate allegations of differential treatment (resource [link](#)).

Assess any disproportionate effect on students, such as:

- 100 total “insubordination” infractions in a school year.
- 80 of those violations were students of one race.
- Outcome - 80% “insubordinate” violations is disproportionate to 40% enrollment of students of that race.

Disparate outcomes in discipline alone are (1) not a Title VI violation & (2) are caused by a range of factors.

Monitor data by factors (e.g., race, color, national origin, LEP status).



School Response

When warranted -

- **Train** on infraction definitions, investigation, documentation, & impartiality.
- **Clarify** infraction definitions (e.g., behavior examples of subjective infractions).
- **Reevaluate** the infraction/consequences assigned to a student.



Limited English

Title VI prohibits discrimination due to national origin ensuring that students with limited English proficiency (LEP) have equal access to educational opportunities.



VIOLATION:

- **Deny access** to programs/services to students with LEP.



School Response

- **Identify** students with LEP & assess their language needs.
- Provide adequate **support** for academic success.
- **Monitor** the progress of students with LEP & adjust services as needed.
- Provide to parents of students with LEP important information **in a language** they can understand & notice of language assistance services.
- **Train** teachers & staff to support effectively.

Ancestry, Characteristics, Citizenship, & Residency

Title VI prohibits discrimination due to actual or perceived ancestry, ethnic characteristics, citizenship, or residency in a country with a dominant or distinct religion.



VIOLATION:

- **Deny enrollment** due to shared ancestry.



School Response

- **Republicize** Title VI nondiscrimination policy
- **Provide training** with examples of nation origin discrimination involving religion.
- **Review** if school programming (e.g., International Holocaust Remembrance Day, Black History Month) discourages students from attending.

Arkansas Code § 6-16-2003 prohibits antisemitism.

School Response • **Define & prohibit** antisemitism in policy. • Reasonably **restrict** speech to protect students. • **Report** discrimination & harassment to ADE.